

COURTING BLUES

With squabbles increasing in families, courts are getting clogged with cases relating to divorce, dowry, infidelity inheritance and maintenance

■ By Farzand Ahmed

In the days of the Raj, the massive dilapidated building on Lucknow's China Bazaar lane, named for some queer reason the American Library, was a recreation centre where British officers and their families got together to unwind. These days, couples turn up here by the dozen to sort out their marital discords.

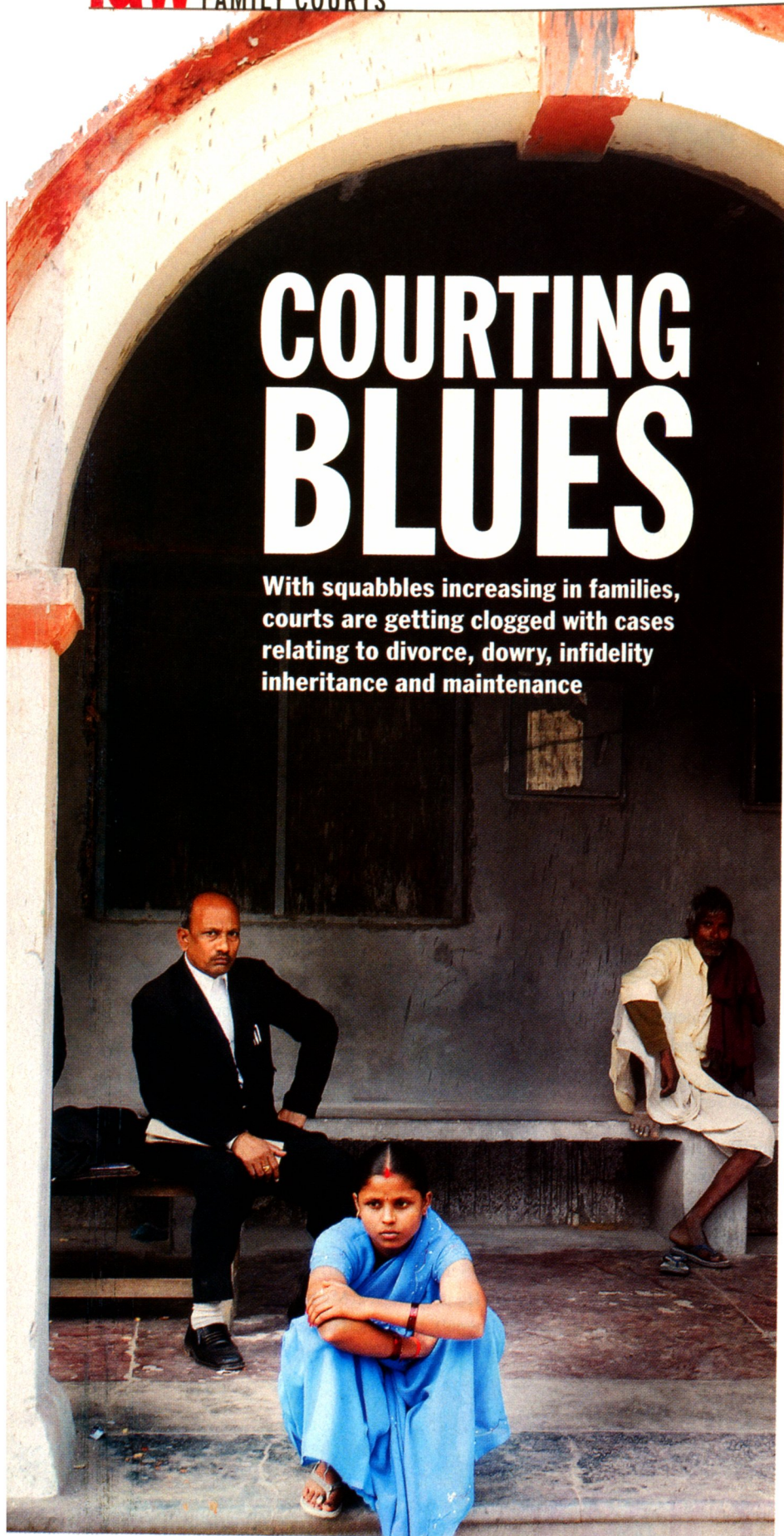
Family courts across Uttar Pradesh are struggling under a deluge of divorce cases as relationships are breaking down sooner than they are being forged and suspicions increase between couples. Set up to promote the welfare of families, family courts are ironically presiding over ever-increasing cases related to domestic violence, dowry, allegations of infidelity and inheritance claims. Sample this: the Lucknow family court has a pile-up of more than 13,000 cases with an average of 10 cases coming everyday; Allahabad's two family courts have over 7,000 cases while the Gorakhpur family court gets five to six cases everyday.

Former president of the Lucknow Family Court Bar Association Padm Kirti, defending the delays, says cases take time because the courts want



WEARY: Litigants wait (left); others check out their dates (above)

family disputes to be settled amicably. He adds that the bench and even bar members try to make warring couples understand that no religion or society favours divorce. Besides, the very philosophy behind the Family Courts Act 1984 was to protect and preserve the institution of marriage and to promote the welfare of children. Delays are the result of trying to provide for settlement of disputes by reconciliation. The Lucknow court lists about 250 cases for hearing every day but gets to hear barely 20. Despite detailed hearings, many women do not get adequate



Photographs by MANEESH AGNIHOTRI